

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN ZIMBABWE

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Zimbabwe, even under one of the harder governments in the region. The clearest proof came in 2020, when the government quietly granted two Chinese companies special grants to explore for coal inside **Hwange National Park** — Zimbabwe's largest, home to more than forty thousand elephants, black rhino, and painted dogs. Conservationists and rangers spotted the geologists; a public outcry erupted; and the **Zimbabwe Environmental Law Association (ZELA)**, with a Hwange resident, rushed an urgent application to the High Court, arguing that mining in a national park breached the Constitution's duty to prevent ecological degradation and that the grant had skipped the required environmental assessment. Within days the government **reversed course and banned mining in all national parks "with immediate effect,"** promising to cancel the titles it had granted. A destructive project inside an irreplaceable park was stopped, because the public raised the alarm and a lawyer turned the Constitution into a weapon. The specifics matter. The grants went to Zimbabwe Zhongxin Coal Mining Group and Afrochine Energy, a subsidiary of the Chinese steel giant Tsingshan, to drill in the Sinamatella and Deteema areas of Hwange; it was a conservation body, the Bhejane Trust, whose team first found the geologists at work, and ZimParks rangers who made the arrest. ZELA and a Hwange resident, Fedelis Chima, filed the urgent application, and after a Cabinet meeting the Information Minister, Monica Mutsvangwa, announced that mining in national parks was banned with immediate effect and that titles would be cancelled — alongside a ban on riverbed and alluvial mining. It was a genuine, fast victory; it was also, tellingly, an announcement rather than a law, which is why campaigners kept pressing to see it enforced.

Hwange teaches two things about winning in Zimbabwe — including its hard limits, which this guide will not hide. The first is the pattern: not a single silver bullet, but the combination of every lever — the Constitution's justiciable rights, public-interest litigation, the environmental-assessment process, community and traditional leadership, mobilisation, and national and international attention — pressed until a project became impossible. The second is distinctly Zimbabwean. The **2013 Constitution** contains a genuinely justiciable Declaration of Rights, including a **right to a clean environment** and an unusually **broad rule of standing** that lets any person — or a lawyer or NGO acting in the public interest — take a case to court on a community's behalf. That combination, wielded by organisations like ZELA, is the country's sharpest lever. But the same fight also shows the limit: the ban was announced, not yet written into law, and campaigners are still pressing to make it real — in Zimbabwe, a win must often be fought into enforcement.

Most communities, though, do not know HOW to make opposition effective. They complain to the councillor and wait. They assume the mine or the eviction "is government business," and so they never demand the environmental assessment, never insist on real consultation, never bring a public-interest case under the Constitution, never raise the public alarm, never build the mobilisation that changes a decision. They generate a burst of anger without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Zimbabwean system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(the EIA, consultation, the Constitution, public-interest litigation)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a court case is a headline and a headline strengthens a case. The community that runs all five together, each reinforcing the others, is the one that wins. The Hwange campaign did exactly this — the alarm was raised and documented, the public mobilised, ZELA brought the

constitutional case, and the story went national and global, all at once, until the government backed down.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Zimbabwe's give communities a distinctive set:

- **The 2013 Constitution's justiciable rights.** The Declaration of Rights is enforceable in court, and includes a **right to a clean, protected environment** and a right to **fair administrative action**.
- **Broad public-interest standing.** Section 85 lets a person act in their own interest, on behalf of others, as a group, or **in the public interest** — so a lawyer or NGO can take a case for a community that could never litigate alone.
- **Public-interest litigation.** A strong tradition of NGOs — **ZELA**, Veritas, and others — bringing environmental and rights cases, the lever that stopped Hwange.
- **Environmental assessment.** Prescribed projects need an **environmental impact assessment (EIA)** certificate from the **Environmental Management Agency (EMA)** under the Environmental Management Act — a requirement the Hwange grant ignored.
- **Traditional leadership.** Chiefs and headmen are custodians of communal land and custom, and their rejection of a project carries real weight — as the Chilonga chiefs' refusal showed.
- **Reputation and wildlife.** Zimbabwe's iconic parks and wildlife draw worldwide attention and tourism, making some projects acutely sensitive to scrutiny.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. Zimbabwe is a **hard environment**: the ruling party dominates, the separation of powers is weak, and the government has shown it will **maneuver around adverse rulings** — when the Chilonga community challenged its eviction, the government simply rewrote its legal instruments, and the villagers later lost in the High Court and had to turn to the Constitutional Court. **Communal land is insecure** — occupiers hold use rights, not title, and the state can "set aside" land over their heads. A collapsing economy drives a **mining-first, "open for business"** push backed heavily by **Chinese investment**, and mining title often overrides other land uses. Even a won ban, like Hwange's, can go **unenforced**. And civic space is shrinking, with real risks to activists. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright stop is not realistic, how to secure the delay, the exposure, the conditions, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Zimbabwean development project runs through several tracks at once, and each is a place to intervene.

Environmental authorisation. A prescribed project — a mine, a dam, a large agribusiness or infrastructure scheme — needs an **EIA certificate** from the **Environmental Management Agency (EMA)** under the Environmental Management Act, based on an impact assessment and public consultation. This is a key permit, and a project that lacks it, or whose EIA is a sham, is vulnerable — the Hwange grant was challenged partly because it skipped this.

The mining title. Mining is governed by the **Mines and Minerals Act**, under which the mining commissioner or the President grants claims and special grants. A hard feature of Zimbabwean law is that **mining rights often override other land uses**, so a mining title is frequently the instrument driving a destructive project — and the point to scrutinise.

The land and its leaders. Most rural land is **communal land**, vested in the President and administered by **Rural District Councils** in consultation with **traditional leaders (chiefs)**; occupiers hold use rights, not title. The state can "set aside" communal land — the power used against Chilonga — but must, in principle, act lawfully and consult. This insecurity is the deep vulnerability of rural Zimbabwe: unlike a titled owner, a communal occupier can be moved by a stroke of a minister's pen, and the burden falls on the community to prove the set-aside unlawful rather than on the state to justify it. It is compounded by a mining regime in which a special grant or claim can, in practice, trump the land rights of those already living and farming there — so the same acre can be promised to a miner over the heads of the people who hold it.

The courts. The **High Court**, **Supreme Court**, and **Constitutional Court** enforce the Constitution's Declaration of

Rights — the forum where Hwange was challenged and where communities take their strongest stand.

The Journey of a Project

A typical project moves from a proposal, to the securing of a **mining title or land** (a claim, a special grant, a set-aside of communal land), to the **EIA and EMA certificate**, through any **consultation** with the community and its chiefs, into the **courts** if challenged, and only then to construction. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: demanding the EIA and real consultation, raising the public alarm, scrutinising the title. The later doors — an urgent High Court application, a constitutional case under section 85 — are more demanding but real, and communities and their lawyers walk through them and win, as Hwange showed. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Title

Behind the project stand a proponent — often a mining company (frequently a Chinese investor, sometimes in joint venture with a state entity), an agribusiness, or the government itself — its financiers and buyers, and the officials who granted the title and the EIA. Trace who owns and funds the proponent, who buys its output, and who granted the grant and the certificate. Two questions unlock most Zimbabwean fights: **Was it lawful — the title, the EIA, the consultation, the constitutional limits — and were the impacts honestly assessed?** and **Who benefits from pretending they were?** Because so many projects rest on foreign investment and Zimbabwe's wildlife-and-tourism reputation, the financiers, buyers, and international attention are often reachable pressure points. Many of Zimbabwe's most destructive projects are joint ventures between a foreign — often Chinese — investor and a state entity, sold into global commodity markets and dependent on the country's standing as a place worth investing in and visiting. That makes the chain unusually reachable at its far end: an investor answerable to its own regulators, a buyer with sourcing commitments, or a tourism market that will not abide the drilling of an elephant park can all be pressed where a captured domestic office cannot.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **courts** enforce the Constitution. **EMA** supervises environmental compliance and can be pushed to act. The **Zimbabwe Human Rights Commission** examines rights violations, and **Parliament's portfolio committees** can scrutinise a scandal. The **Auditor-General** audits public money, and **ZimParks** — the wildlife authority — has its own institutional stake in protecting the parks, as its rangers showed at Hwange. And an active civil society — ZELA, Veritas, CNRG, and others — together with the international press and conservation world, watches throughout. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to EMA, the High Court, the Human Rights Commission, a parliamentary committee, ZimParks, the foreign investors, and the international press at once, and each front that opens makes the others harder to close. A Zimbabwean campaign's power comes not from any single lever but from applying several at the same time — with the Constitution, the courts, and the public alarm as the ones that reach furthest when the executive is set on a project.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Zimbabwean and comparable campaigns tend to go, not a controlled study. The decisive variables are whether a **constitutional right or a clear legal defect** is engaged (a missing EIA, an unlawful set-aside), whether **public-interest litigators** will take the case, whether the project touches an **iconic, reputation-sensitive** value like the parks, whether it is **mining- or state-driven** with Chinese backing (which stiffens resolve), and whether the public and international attention can be reached. Where a constitutional defect meets an organised community, a good lawyer, and public outrage, Zimbabwe's levers can work; where the project is a well-connected mining venture the state is determined to protect, discount the figures and think in terms of delay, exposure, and a win you must fight to enforce.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5-10%	1-3 months	low	Basis for every other step
Demanding the EIA / real consultation	20-40%	weeks-	low	Process forced; project reshaped or

		months		stalled
Objection at the EIA consultation	15-35%	during review	low	On record; conditions; grounds
Urgent High Court application	25-50%	days-months	low-moderate	Interim interdict; project halted for now
Constitutional / public-interest case (s85)	30-55%	months-years	low-moderate	Right vindicated; grant or set-aside struck
Challenge to the set-aside / eviction	25-45%	months-years	low-moderate	Eviction barred or delayed (the Chilonga fight)
EMA / regulator complaint	20-40%	months	low	Compliance action; suspension
Public alarm & media campaign	30-55%	ongoing	low	Reversal under pressure (the Hwange lever)
International / reputation / tourism pressure	25-50%	months-years	low	Backers respond; image and revenue at stake
Traditional-leadership refusal	20-45%	ongoing	low	Legitimacy denied; project weakened
All steps combined (constitutional defect + outrage)	40-65%	1-4 years	low-moderate	Stalled, struck, reversed, or stopped
All steps combined (connected mining venture, state-backed)	15-40%	1-5 years	low-moderate	Delayed, exposed; a win you must enforce

Key insight: every step together beats any single one, and Zimbabwe's real strengths are distinctive — the **2013 Constitution's justiciable rights**, the **broad public-interest standing** of section 85, the **public-interest-litigation** tradition (ZELA and allies), the **EIA/EMA** requirement, **traditional leadership**, and the **reputational weight of iconic wildlife and parks**. Its constraints are **communal-land insecurity**, **ruling-party dominance** and a government that **maneuvers around rulings**, a **mining-first, Chinese-backed "open for business"** drive, **weak enforcement** of even a won ban, and **shrinking, risky civic space**.

A note on cost: raising the alarm, demanding the EIA, objecting, and complaining to EMA are inexpensive. Litigation costs more — but Zimbabwe's public-interest litigators (ZELA and others) bring exactly these cases for communities, often at little or no cost, which is what makes the constitutional lever real for people with nothing. Hwange was won on an urgent application filed in days. The expenditure that most changes outcomes is that legal support and the reach of the public alarm and international attention.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, struck, reversed, or stopped)

CONSTITUTIONAL DEFECT + PUBLIC OUTRAGE -- missing EIA / unlawful set-aside, iconic or clear harm, litigator engaged:

All steps combined: 40-65%
Public alarm + media: 30-55% (the Hwange lever)
Constitutional / s85 case: 30-55%
Urgent High Court application: 25-50%
Single step: 5-55%

CONNECTED MINING VENTURE, STATE-BACKED -- Chinese-backed, "open for business":

All steps combined: 15-40%
Delay / exposure / enforce the win: more achievable than a clean stop
Reputation + international: the strongest added pressure
Single step: 5-40%

How to read this honestly. The levers that most change outcomes in Zimbabwe are **the Constitution, public-interest litigation, and public outrage** where they apply, and **the reputation and international attention** everywhere. Hwange shows the ceiling: outrage plus a constitutional case forced a national reversal in days. But it also shows the limit — the ban was announced, not legislated, and had to be chased into enforcement. Chilonga shows the floor: a government that rewrites its own instruments to keep an eviction alive, and courts that may not save you. Most Zimbabwean fights sit between them, and the honest lesson is that the Constitution, litigation, and outrage are real levers — but against a connected, state-backed venture the realistic win is often delay, exposure, and a ruling you must then fight to enforce, as much as a clean, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that raises the alarm, briefs a litigator, exposes the EIA defect, rallies its chiefs, and reaches the world at once consistently outperforms the one that pins its hopes on any single move, especially in a system where any one lever can be maneuvered around.

Step Importance Ranking (When All Combined)

1. **The Constitution and public-interest litigation** — Zimbabwe's decisive lever; the justiciable environmental right and the section 85 standing that let ZELA and others sue for a community, as at Hwange.
2. **Public alarm and media** — the outrage that forced the Hwange reversal and that a reputation-sensitive government feels.
3. **The EIA/EMA requirement and the title scrutiny** — the environmental defect and the mining-title question that most often give a project its legal weakness.
4. **The organised community and its traditional leaders** — the mobilisation and the chiefs' refusal that deny a project legitimacy and hold the line.
5. **Reputation and international attention** — the wildlife, tourism, and global scrutiny that reach a project the domestic process may not.

What Zimbabwean Campaigns Actually Show

A few patterns recur. **Public outrage plus a constitutional case can force a reversal** — Hwange did, in days. **The environmental right and standing are real weapons** — ZELA turned them on a grant that skipped the EIA. **Iconic wildlife draws decisive attention** — Hwange's elephants made a remote park a global story. **But the government maneuvers** — at Chilonga it rewrote its eviction instruments and won in the High Court — communal land is insecure, and a won ban may go unenforced. The through-line: **raise the alarm loudly; demand the EIA and real consultation; scrutinise the mining title and the set-aside; bring the constitutional public-interest case through a litigator like ZELA; reach the reputation and the world — and expect a fight measured in delay, exposure, and enforcement as much as a clean stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the special grant and works proceeding without the EIA certificate the law requires, in breach of the constitutional right to a protected environment" is a case. Answer five questions.

The Five Core Questions

1. **What exactly is proposed, and under what instrument?** Name the project, the proponent, and the specific instrument it needs or holds — the **mining title or special grant** under the Mines and Minerals Act, the **EIA certificate** from EMA, any **set-aside of communal land**, or lease. Each has conditions and a paper trail, and each is a place a defect hides.
2. **What stage is it at?** Title or grant sought or issued? EIA under way, done, or skipped? Set-aside gazetted? Consultation held (or faked)? Works begun? In court? The stage dictates the door. If the EIA or consultation is live, demanding a real process is the route now; if a grant is issued or an eviction gazetted, an urgent High Court application may be the route.
3. **Is there an EIA and a real consultation — or a clear legal defect?** This is often the decisive Zimbabwean question. Does the project have a valid **EIA certificate**, or did it skip the assessment (as the Hwange grant did)? Was the community and its chiefs genuinely consulted? Is a **set-aside of communal land** or a mining grant unlawful or outside the granting power (as Chilonga's opponents argued)? A missing EIA or an unlawful instrument is frequently the strongest single ground.
4. **Is a constitutional right engaged?** Does the project threaten the **environment** (section 73), evict people or take their land (property and the fairness of administrative action, sections 71 and 68), or otherwise cross a right in the Declaration of Rights? Where it does, the courts — through the broad standing of section 85 — are your strongest forum.
5. **Who decides, who benefits, and who is watching?** Which officials granted the title and the EIA; who owns, funds, and buys from the proponent (often a Chinese investor or a state joint venture); which community and chiefs are affected; and which public-interest lawyers (ZELA and others), press, conservation bodies, and international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a mining company obtains a special grant to mine near or inside a protected area or a community's land, and

works begin without a visible EIA.

Working the five questions: the project rests on a **special grant** under the Mines and Minerals Act — so scrutinise the grant and whether mining title should override this land at all. It appears to have **skipped the EIA**, so demanding the certificate and reporting to EMA are live now, with an urgent High Court application in reserve. The threat to a **protected environment or a community's land** engages **sections 73, 71, and 68**, opening the courts through **section 85**. The chiefs may reject it. The proponent may be a **Chinese-backed venture** the state is keen to protect, so the **constitutional case, the public alarm, and the reputation** carry more weight than quiet complaint.

Within a weekend you have moved from "we oppose the mine" to a target list: demand the EIA certificate and report its absence to EMA; scrutinise the special grant; raise the public alarm and document the works; brief a public-interest litigator to prepare an urgent High Court and constitutional case; rally the chiefs' refusal; identify the Chinese investor and the reputational and international angle; and prepare the land-or-wildlife story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — demand the EIA, scrutinise the grant, raise the alarm, brief a litigator, rally the chiefs — each tied to a specific lever and each of which can begin today, several of them fast enough to matter before the bulldozers arrive. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. A High Court judge, an EMA official, a journalist, and a project's foreign investors all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **mining title or special grant** and its terms; the **EIA report and certificate** (or proof there is none) from EMA; any **set-aside notice or statutory instrument** and the power it was made under; and the **consultation record** with the community and its chiefs. Some is public or obtainable on request; a refusal is itself a documentable fact. The gap between what the paper claims — a lawful grant, a valid EIA, a real consultation — and what the law and the Constitution require is where cases are won. Hwange turned on exactly this: a grant to mine a national park that had skipped the environmental assessment and breached the constitutional duty to protect the environment. Read whatever documents you obtain against the grain, for what they concede or omit — a special grant that names no EIA, a set-aside instrument whose stated purpose does not match any lawful ground (as Chilonga's opponents showed of SI 50), a consultation "record" that is really a single announcement. In a system where the paperwork is often thin or defective, the defect itself is frequently sitting on the face of the document, waiting to be named.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual site** — the park, the river, the fields, the homes, the wildlife, the works, the geologists' rigs — and geotag it; it was alert observers who first caught the Hwange geologists in the act. Log **incidents**: clearing, drilling, an eviction notice, a blocked water source. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Record **the community's occupation and use** — where the community chooses to share it, its long presence (the Chilonga Shangaan have lived there since the 1830s), its fields, water, graves, and heritage — because occupation and harm are the heart of the case. Record **testimony** from residents, chiefs, rangers, and independent experts.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the constitutional lines the project crosses. Was there **no valid EIA certificate**, or a sham assessment? Was the **mining grant or set-aside unlawful** — outside the granting power, or wrongly overriding a community's land? Was **consultation skipped or faked**, and did the **chiefs reject it**? Does the project threaten the **environment** (section 73), **evict people or take land** unfairly (sections 71 and 68), the harms the Constitution forbids? Each defect is a separate ground — for a demand, an EMA complaint, an urgent interdict, or a constitutional case under section 85 — and together they make a case that is hard to wave away. This is the layer that most often decides Zimbabwean fights, because here a project that looked authorised is revealed to lack its EIA, to rest on an unlawful grant or set-aside, or to violate a right the courts will enforce. Work it methodically against each requirement: is there a valid EIA certificate; was the mining grant or the set-aside made lawfully and within the granting power; was the

community and its chiefs genuinely consulted; does the project threaten the environment, or evict people, in breach of sections 73, 71, and 68? Where the answer is no, capture the proof — because each 'no' is a separate ground EMA, the courts, or the public can act on, and the missing-EIA and unlawful-instrument grounds are the ones a court can act on fastest.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Zimbabwean cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Title, the Permits, and Their Paper Trail

- **The mining title or special grant** under the Mines and Minerals Act — who holds it, over what land, and whether it was lawfully granted (special grants can require the President's authority).
- **The EIA report and certificate** from **EMA** — or proof that none exists, which is often the decisive defect, as at Hwange.
- **The set-aside notice or statutory instrument** for communal land, and the specific power it was made under — Chilonga's opponents attacked exactly this, arguing the Minister acted outside the Communal Land Act.
- **The consultation record** — evidence of whether the community and its chiefs were genuinely consulted, or whether a meeting was staged or the chiefs' rejection ignored.
- **The joint-venture and investor details** — the Chinese or other partner, and any state entity (such as a mining development corporation) behind the project.

How to Get Them

Environmental records are held by **EMA**; mining titles by the mining commissioner's office and the ministry; set-aside instruments are published as statutory instruments (and analysed by groups like Veritas); consultation records by the Rural District Council and the chiefs. Request them, and use any right of access; a refusal or an unexplained silence is itself evidence. Above all, **bring in a public-interest litigator early** — ZELA and similar organisations can compel disclosure, obtain records a community cannot, and read a grant or an SI for the defect that undoes it. Move fast: in Zimbabwe a destructive project can begin quickly, and the strongest remedy is often an **urgent interdict** obtained before the damage is done — Hwange was challenged on an urgent basis within days of the alarm. A practical tip: because the strongest remedy is often the urgent interdict, gather the few decisive documents and the dated evidence of imminent harm first — the grant, the absent EIA, photographs of works beginning — rather than waiting to assemble a perfect file; a litigator can move on an affidavit and a handful of exhibits, and in a fast-moving project the interdict that stops the bulldozers today is worth more than the comprehensive dossier finished next month.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the works, the wildlife, the homes — and of any unauthorised activity, as the Hwange geologists were caught.
- **Satellite before-and-after** from freely available imagery, to show clearing, drilling, or the true extent.
- **The community's occupation and heritage** — where the community chooses to share it, its long presence, its fields, water, graves, and cultural sites, mapped against the footprint and the set-aside.
- **Independent technical and expert readings** — an ecologist's, hydrologist's, or heritage expert's report, and an independent review of any EIA. NGOs, universities, and conservation bodies can help source these.
- **Maps** overlaying the footprint on the park, the community's land, the water, and the wildlife range — a single map of a coal drill inside an elephant park, or a mine over a village, is worth pages of argument.
- **Testimony** — from residents, chiefs, rangers, and experts, on the occupation and the harm.

Organise It So It Persuades

Keep a **master timeline** of the grant, the EIA (or its absence), the set-aside, the consultation, the works, and every incident and deadline — the spine of any urgent application or constitutional case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and a judge all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can move fast and then drag for years — Hwange in days, Chilonga over years — the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sometimes in a fast burst of public alarm, sometimes over years of grinding pressure. Hwange was won on a wave of outrage; Chilonga has demanded endurance. A campaign must be ready for both.

Phase 1: The Core, and the Community's Leaders

Start with a small, committed core — five to fifteen people who will carry the work. Root it in the community's own structures: the **chiefs and headmen** are custodians of communal land and custom, and their rejection of a project is a powerful, legitimate act — the Chilonga chiefs' refusal was central to that fight. Follow the community's lead. Where the affected people are a distinct minority — as the Shangaan of Chilonga are — that deference matters all the more: they know their land, their heritage, and their own leadership better than any outside ally, and a campaign that speaks over them both wrongs them and weakens the evidence of long occupation and community will on which the strongest case is built. Assign roles: documentation, legal liaison (a public-interest litigator above all), community and chief liaison, media and public alarm, and coordination. Agree on the goal — a project stopped, a grant or set-aside struck, an eviction barred, a reversal forced — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **neighbouring communities, the chiefs, churches, war-veterans and civic associations, students, conservation groups, and scientists**. Reach the **allies with capacity** — the public-interest litigators (**ZELA**, and legal-analysis bodies like **Veritas**), the research and advocacy groups (**MACRAD**, **CNRG**), the conservation organisations (as **Bhejane Trust** and ZimParks rangers were at Hwange), and the campaigners who can reach foreign investors and the international conservation world. Hwange drew its power from exactly this breadth — rangers, conservationists, lawyers, and a global audience — while Chilonga has leaned on lawyers and research NGOs to sustain a long fight. That spread is precisely what a winning campaign needs. Know the ecosystem you can draw on: ZELA litigates environmental and community cases and can move on an urgent basis; Veritas analyses laws and statutory instruments and publishes the legal defects for all to use; MACRAD and CNRG carry out community research, advocacy, and organising; and conservation trusts and the wildlife authority itself have their own stake in defending the parks. A community that plugs into this network early gains, at little or no cost, the legal firepower and the credibility that a lone objector could never assemble.

A worked coalition example. Facing a Chinese-backed mine near a park or a village, alert local observers and rangers document the activity; the chiefs reject it; ZELA prepares an urgent High Court and constitutional case; a conservation body and scientists supply the ecological evidence; and the story is pushed to national and international media. No single group could have carried it; together they cover the alarm, the law, the science, the community legitimacy, and the global reach — the Hwange model.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat — and in Zimbabwe a fight can drag for years while the government maneuvers. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — an interim interdict, a document pried loose, a defect exposed, a wave of coverage. Rotate the exhausting roles. And protect people: civic space is shrinking and activists face real risk, so keep leadership collective and visible, document any intimidation, work closely with lawyers and human-rights bodies, and take security advice. Sustaining a campaign — as Chilonga's long resistance shows — is how the hard fights are won, and the ones that endure pace themselves. Build in the things that keep people together when a fight drags on and the government keeps changing the rules: welcome newcomers, share the load, mark every interim win, root the campaign in the chiefs and the community's own life, and never let a leader stand alone in a climate where standing out carries risk. A fight that must outlast repeated statutory rewrites and an unenforced ban is won only by a movement that has become part of the community's identity.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for EIA consultations, meetings, and peaceful, well-documented gatherings. Let the **chiefs speak** for the community's rejection. Above all, raise the **public alarm** loudly and quickly — the Hwange reversal came because outrage, amplified nationally and globally, made the project politically unbearable within days. Be clear-eyed about legal risk and the shrinking space for protest, and take advice. The point is not spectacle;

it is to demonstrate, to EMA, the courts, the government, the investors, and the world, that the community and the public are watching, organised, and not going away.

STEP 4: LEGAL CHALLENGES — THE EIA, THE CONSTITUTION, AND PUBLIC-INTEREST LITIGATION

Zimbabwean law gives communities a real arsenal, and you do not need a final ruling to win with it: a demand, an EMA complaint, or an urgent interdict delays a project, forces disclosure, and creates leverage and headlines. Engage a public-interest litigator early — but understand the tools yourself.

The EIA and the Regulator

The first lever is the environmental process. A prescribed project needs an **EIA certificate** from **EMA** under the Environmental Management Act, based on an assessment and public consultation. Demand the certificate; if there is none, that absence is a powerful ground, as it was at Hwange, and can be reported to EMA and put before a court. Object substantively at any consultation, putting your strongest evidence — on the wildlife, the water, the community — on the record. A missing or sham EIA is often the cleanest defect a court will act on quickly.

The Constitution and Public-Interest Standing

Zimbabwe's decisive lever is the **2013 Constitution's justiciable Declaration of Rights**. Three provisions matter most. **Section 73** guarantees the right to an environment that is not harmful, and to have it protected against ecological degradation — the ground on which Hwange was challenged. **Sections 71 and 68** protect property and the right to lawful, reasonable, and procedurally fair administrative action — the grounds against an unlawful set-aside or eviction, as at Chilonga. And **section 85** gives an unusually **broad standing**: a person may approach the court in their own interest, on behalf of others who cannot act, as a member of a group, or **in the public interest** — which is what lets an organisation like **ZELA** bring the case for a community that could never litigate alone. Together these turn the Constitution into a weapon a lawyer can wield fast. It is worth knowing the provisions precisely: section 73 gives everyone the right to an environment that is not harmful to their health and to have it protected for present and future generations, including through measures that prevent pollution and ecological degradation; section 68 guarantees administrative conduct that is lawful, prompt, efficient, reasonable, proportionate, and procedurally fair; and section 71 protects against arbitrary deprivation of property. Because section 85 opens standing so widely — including to anyone acting purely in the public interest — these rights are not abstractions reserved for the directly harmed, but tools a public-interest litigator can deploy the moment a project crosses the line.

The Urgent Interdict and the Long Case

Two procedural realities shape the fight. First, the **urgent chamber application** for an interim interdict is often the sharpest tool: filed in days, it can freeze works or an eviction before the harm is done — Hwange and the early Chilonga relief both came this way. Second, the **full constitutional case** is slower and harder, and here Zimbabwe's difficulty shows: the government may rewrite its instruments to cure a defect, as it did with the Chilonga statutory instruments, and a court may ultimately rule against the community, as the High Court did at Chilonga before it went to the Constitutional Court. The Chilonga sequence is worth studying as a warning. In February 2021 the Minister issued Statutory Instrument 50, setting aside roughly 12,940 hectares of communal land — home to some 13,840 Shangaan people, who have lived there since the 1830s — for a lucerne-grass project by the dairy company Dendairy. ZELA and the research group MACRAD challenged it; the government, rather than defend the flawed instrument, simply replaced it, issuing SI 63A and then SI 72A to fix the defects the community's lawyers had identified. In January 2022 a High Court judge dismissed the villagers' challenge, and they were forced to take the fight to the Constitutional Court — a vivid illustration that in Zimbabwe a legal victory can be undone by a government willing to rewrite the rules. So combine the two — win time with the interdict, press the constitutional case, and never rest the whole fight on a single ruling.

Enforcing the Win, and the Traditional-Leadership Card

Two further realities complete the arsenal. First, and hard-won: **a win must be enforced**. The Hwange ban was announced but not immediately legislated, and campaigners had to keep pressing for it to be written into law and the titles actually cancelled — so plan from the start to chase a victory into reality through follow-up litigation, EMA, and sustained pressure. Second, the **refusal of the traditional leaders** — the chiefs and headmen — denies a project the legitimacy of community consent and is both a political fact and, where consultation was legally required, a legal one;

secure and document it. A written, witnessed record of the chiefs and the community formally withholding consent is worth gathering early, because it is at once a political fact the government must reckon with, a piece of evidence for the court, and a rebuttal to the familiar official claim — heard at Chilonga — that the community was consulted and agreed.

Where to Turn and With Whom

EIA complaints go to **EMA**; urgent interdicts and constitutional cases to the **High Court** and, on constitutional questions, the **Constitutional Court**; set-aside and eviction challenges to the courts; rights complaints to the **Zimbabwe Human Rights Commission**. Get help early: public-interest litigators like **ZELA**, and legal-analysis bodies like **Veritas**, know exactly these procedures and can advise on the urgent application, the strongest constitutional ground, the standing under section 85, and — learning from Chilonga — how to anticipate the government's maneuvers and, learning from Hwange, how to enforce a win. A litigator engaged in the first days, while an interdict can still stop the works, is worth far more than help sought after the damage is done.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades a High Court judge, an EMA official, a journalist, a foreign investor, a chief, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mining special grant was issued over a protected area or a community's land, with no EIA certificate and no real consultation. That one fact becomes:

- **A constitutional argument:** the project threatens the environment and rests on unlawful, unfair administrative action — grounds under sections 73, 71, and 68, brought via section 85.
- **An environmental-law argument:** the project lacks the EIA certificate the Environmental Management Act requires — the clean defect that helped stop Hwange.
- **A public-outrage argument:** an irreplaceable park, or a people's ancestral land, handed to a mining venture behind the public's back — the story that forced the Hwange reversal.
- **A media argument:** elephants' habitat drilled for coal, or a whole community evicted for a private project — a vivid, resonant story.
- **A reputational argument:** a project tainting a globally watched park, or evicting an Indigenous minority, is a liability to its foreign investors and to Zimbabwe's tourism and image.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Zimbabwe the arguments that most often decide things are the **constitutional and EIA ones**, because they let a lawyer act fast, and the **public-outrage one**, because a reversal under pressure (as at Hwange) can be quicker than any judgment. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court file and a claim made to the court can be spoken plainly at a community meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — sections 73 and 85 for the court, the missing EIA for EMA, the reputational and wildlife risk for the investor, the vivid harm for the reporter, the legitimacy of the land for the chiefs — is one of the most valuable skills a campaign develops, because it lets the same underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The courts want the illegality framed precisely against the specific rule — sections 73, 71, 68, and 85; the Environmental Management Act; the Mines and Minerals Act; the Communal Land Act — with the documents and the timeline that prove it.

EMA and officials respond to legal risk and their mandate — the missing EIA, the unlawful grant, the exposure to a court order.

Journalists need a specific, verified, resonant story with a hook: a named park or community, drilling or eviction, a documented defect, a live threat.

Foreign investors and buyers respond to legal and reputational exposure — a project tainting a famous park or evicting a minority, tied to a named company and to Zimbabwe's image.

Chiefs and the community respond to legitimacy and their custodianship of the land — and their public refusal is itself a lever.

The community itself needs to see that the fight is winnable and shared — the interdict, the coverage, the movement holding — so it lasts through a long fight and its enforcement.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever — and in Zimbabwe, public outrage is sometimes the fastest lever of all. Coverage raises the political cost of a project, reaches officials and ministers, reaches the foreign investors your letters cannot, protects activists by making them visible, and can turn a local fight into a national and global cause. Hwange is the proof: a wave of national and international outrage over coal drilling in an elephant park forced a government reversal within days — faster than any court could have.

Build the Story

Reporters need specifics: a named place and stake, a dated and documented defect or harm, and a live threat. "A project threatens the environment" is not a story; "two Chinese firms were granted coal-exploration rights inside an elephant park, with no environmental assessment, and drilling has begun" is — and so is "a whole community that has lived here since the 1830s is being evicted for a private dairy's grass project." Lead with your strongest verified fact, attach the map and the imagery — including any footage of unauthorised works or the wildlife at stake — and offer a human or expert voice: a chief, a resident, a ranger, a scientist.

Reach the Right Outlets

Work outward in rings. **Local and community media** first, where the project is felt. Then **national outlets** — Zimbabwe's independent press and online news, which carry the story into national politics. Then, because Zimbabwe's wildlife and its human-rights record draw global attention, **international media and the conservation world**, which reach the investors, the tourists, and the diplomatic pressure points; Hwange became a worldwide story precisely because of its elephants. Feed each ring what it needs, and let coverage in one pull in the next. In Zimbabwe the **international ring is unusually powerful**, because a government sensitive to its image and its tourism revenue — and Chinese partners sensitive to global scrutiny — both feel it. It is worth identifying the specific reporters at Zimbabwe's independent outlets who cover the environment, mining, and land, and the international correspondents and conservation writers who follow African wildlife and Chinese investment; a journalist who already knows the terrain needs less briefing and carries more weight, and a single vivid, well-sourced story — geologists in an elephant park, a village facing eviction — can move a government or an investor more than months of quieter effort. Offer your strongest documented finding, with imagery, as an exclusive, and you gain an ally.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions — and, for a slow fight like Chilonga, must be sustained for years. Plan a sequence — the alarm, the interdict, the EIA fight, the court case, the enforcement struggle, the action — so there is always a next hook, and build your own record (a simple page, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild, and in a tense environment accuracy is also protection. Weigh safety in every choice, given the risks to activists, and coordinate with human-rights bodies on how and when to raise a profile. Verified, specific, vivid, and relentless — that is the coverage that shifts outcomes, and in Zimbabwe it is sometimes what wins fastest.

EMAILS & LETTERS

Written communications are how you demand, object, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Demand for the EIA / Complaint to EMA

To: the Environmental Management Agency (EMA) **Subject:** [Project], [location] — EIA certificate and compliance

We are affected by [project] at [location]. We request confirmation of whether a valid **EIA certificate** has been issued for it, and a copy. We are concerned that [works have begun without an EIA / the assessment was inadequate / the project threatens [the park, the water, the community]]. Where no valid certificate exists, we request that EMA **halt the activity** and enforce the Environmental Management Act. [Attachments: photographs of the works, maps, technical note.]

8B. Request for Records

To: [EMA / the mining commissioner / the Rural District Council] **Subject:** Request for records — [project]

We request copies of the following records concerning [project]: the mining title or special grant; the EIA report and certificate; the set-aside notice or statutory instrument and the power it was made under; and the consultation record with the community and its chiefs. Please provide these promptly. If any record is withheld, please give the reason, which we may pursue further.

8C. Instructing a Public-Interest Litigator (urgent)

To: a public-interest / environmental lawyer or organisation (e.g. ZELA) **Subject:** URGENT — [project], possible urgent interdict and constitutional case

We believe [project] at [location] is unlawful and imminently harmful because [it has begun without an EIA certificate / rests on an unlawful grant or set-aside / threatens a protected environment / would evict our community]. Works [have begun / are imminent]. We attach the grant, any EIA documents, the set-aside instrument, and our timeline, and seek urgent advice on an **urgent chamber application for an interdict** and a **constitutional case** under sections 73, 71, 68, and 85 — and on how to anticipate the government amending its instruments, and how to enforce any win. Time is critical.

8D. Statement of the Chiefs' / Community's Rejection

To: the Rural District Council / the relevant Minister, from the chiefs and community **Subject:** [Project] — the community of [place] does not consent

We, the chiefs, headmen, and people of [place], record that we do **not consent** to [project] on our communal land. We were [not consulted / consulted only after the decision / ignored when we objected]. As custodians of this land and its heritage — which our community has held since [time] — we reject the project and any set-aside of our land, and we ask that our rejection be recorded and respected before any further step. [Attach the record of the community meeting.]

8E. Letter to a Foreign Investor / Buyer

To: [the investor / parent company / buyer] **Subject:** [Project] — legal and reputational risk

We write regarding your [investment in / partnership with / purchasing from] [company] in connection with [project] at [location]. The project [one-line stake — e.g. "would mine coal inside an internationally famous elephant park, without the environmental assessment the law requires, and is under constitutional challenge" / "would evict a whole community from land it has held for generations"], and our documented concerns include [the missing EIA, the unlawful grant, the constitutional case, the community's rejection]. We ask you to weigh the legal, reputational, and ethical risk — including to Zimbabwe's wildlife and tourism reputation — and whether your own [environmental and human-rights commitments] are consistent with it. We are glad to share our evidence.

8F. Letter to a Minister / MP / Parliamentary Committee

To: [the relevant Minister / MP / portfolio committee] **Subject:** [Project] — concerns and request

We write about [project] at [location]. Our concern, briefly: [one or two specific grounds — coal drilling in a national park, an eviction of our community, a missing EIA]. Within your responsibility, we ask you to [halt or review the grant / uphold the ban on mining in parks / ensure a lawful process and real consultation]. [If true:] the project has drawn national and international concern and carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Email to a Reporter (National or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the park / the community]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents and images] show [quantified finding — e.g. "coal exploration has begun inside an elephant park with no environmental assessment" / "a community of thousands faces eviction for a private project"], with [a decision/eviction/hearing] due [date]. It is specific, verified, and it echoes the Hwange reversal and the Chilonga case. I can share the full file and connect you with a chief, a ranger, or a lawyer. Could we talk this week?

8H. Letter Seeking Protection / Raising the Alarm on Threats

To: the Zimbabwe Human Rights Commission, copied to allies and the press **Subject:** Protection concern — defenders opposing [project]

We report that leaders and members of the community and campaign opposing [project] face [threats / intimidation / arrest / pressure]: [sourced facts, dates]. Given the risks to defenders in Zimbabwe, we request [monitoring / investigation / protection], and we are informing human-rights organisations, our lawyers, and the press. We attach the record of incidents.

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — the record of a demanded-but-absent EIA, or an ignored community rejection, is itself evidence, and for a later Inter-American or international step, the record of exhausted domestic remedies matters too. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and imagery; and route them, where you can, through the community's chiefs and leaders, your public-interest litigator, and your conservation and international allies. The reply — or the silence — becomes part of your record, and in Zimbabwe that record feeds the levers that matter most: the EIA and EMA, the Constitution and the courts, the chiefs' refusal, and the public alarm — with the hard work of enforcing any win planned for from the start.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

- 1. Raise the public alarm — loudly and fast.** In Zimbabwe, outrage is sometimes the quickest lever: the Hwange reversal came in days because the story became national and global. Document the project and get it seen (8G).
- 2. Reach a public-interest litigator immediately.** ZELA and similar groups can file an **urgent interdict** in days and bring the constitutional case for you, often at little cost (8C). This is the single highest-leverage move where works are imminent.
- 3. Demand the EIA and report its absence to EMA.** A project with no valid **EIA certificate** is exposed; the demand and the complaint (8A) put that on the record and can halt the works.
- 4. Get the chiefs' refusal on record.** The traditional leaders' documented rejection (8D) denies the project legitimacy and can be a legal fact.
- 5. Get the documents.** The grant, the EIA, and the set-aside instrument are the case (8B); the gap between the paper and the law is usually where the project is weakest.
- 6. Reach the investors and the world.** A letter to a foreign investor (8E) and international coverage reach a project resting on foreign money and Zimbabwe's reputation.
- 7. Plan to enforce any win.** Remember Hwange: an announced ban is not an enforced one, so keep pressing after the victory.

Do only the first three and you will have raised the alarm, put a litigator on an urgent footing, and exposed the EIA defect — the exact combination that stopped Hwange. Then come back and read the rest. Even the shortest version has a spine: raise the alarm, get a litigator, demand the EIA. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — it has made the project a public problem, put a litigator on an urgent footing, and exposed the legal defect a court can act on, which is precisely the

combination that turned back the coal grant at Hwange.

WHEN THE SYSTEM IS TILTED

Zimbabwe's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt is steep and openly political. The ruling party dominates, and the **separation of powers is weak**: courts can be pressured, and the government has shown it will **maneuver around adverse rulings** — at Chilonga it repeatedly **rewrote its own statutory instruments** to cure the defects the community's lawyers exposed, and the villagers ultimately lost in the High Court and had to turn to the Constitutional Court. **Communal land is insecure** by design — occupiers hold use rights, not title, and the state can "set aside" their land. A collapsing economy fuels a **mining-first, "open for business"** drive, courting heavy **Chinese investment** ("Look East"), and **mining title frequently overrides other land uses**. Even a clear win can go **unenforced** — the Hwange ban was announced but not promptly legislated, and campaigners had to keep pushing. And **civic space is shrinking**, with arrests and pressure on activists and journalists a real danger. Where this tilt bites, the process gives far less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The Constitution is justiciable. The 2013 Declaration of Rights is real law, and the courts have used it against the government — Hwange was stopped on it. However pressured the judiciary, a well-built constitutional case cannot simply be ignored.

Public-interest standing opens the courtroom. Section 85 means a community need not litigate alone; a lawyer or NGO can act in the public interest, so poverty and fear do not lock people out.

Public outrage can move fast. A reputation-sensitive government, and Chinese partners wary of global scrutiny, can be forced to reverse course quickly when a story becomes national and international — as Hwange proved.

Iconic wildlife and tourism are leverage. Zimbabwe's parks and animals draw a worldwide audience and revenue that a destructive project puts at risk.

The record and the litigators endure. What you document, and the public-interest lawyers who carry it, power the fight over years — and can chase a won ban into enforcement.

The Honest Frame

So the honest frame for Zimbabwe is demanding, and more so than for most countries in this series. The justiciable Constitution, public-interest standing and litigation, the EIA requirement, traditional leadership, and the leverage of iconic wildlife give a community real — in places distinctive — power, as Hwange proved. But the ruling party dominates, the government maneuvers around rulings, communal land is insecure, mining and Chinese investment are pushed hard, wins can go unenforced, and defenders are at risk. So diagnose the tilt honestly: lean on the Constitution, the litigators, the EIA defect, and above all the public and international alarm, not on official goodwill; win time with urgent interdicts; anticipate that the government may rewrite its instruments; plan from the start to **enforce** any win; protect your people; and think in terms of delay, exposure, and a ruling you must fight to make real as much as a clean, permanent stop. Against a connected, state-backed venture that is often what winning looks like — and, as Hwange showed, a fast public reversal is sometimes possible even here.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

In Zimbabwe, undue influence is not a rare aberration but a recurring feature of how big extractive projects are made — think of the diamonds of Marange, where enormous revenues went missing. Where a project is driven by graft or patronage, your strategy shifts: you stop trying to persuade a captured decision-maker and start exposing and going

around them.

How to Tell

Look for the signatures of capture. A **grant or special grant issued to a politically connected or foreign company** without the required EIA or consultation; a **set-aside of a community's land** rushed through for a private beneficiary, as at Chilonga; a **regulator that looks away** while works proceed; **undisclosed joint ventures** between the proponent and state entities or powerful individuals; **conditions never enforced**; and **security forces or party structures used to pressure or evict** a community — each is worth documenting. In Zimbabwe the pattern is often openly political, tied to the extractive economy and the "Look East" investment drive. One anomaly may be error; a pattern is capture.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. **Ministries, regulators, local councils, and even parts of the security apparatus** can be bent toward a connected project. But even in Zimbabwe some bodies and audiences are harder to control: the **courts**, especially on a clear constitutional point litigated in public; the **international press and conservation world**, entirely outside the state's reach; **foreign investors and buyers** answerable to their own regulators and reputations; regional and continental bodies like the **African Commission**; and the **watching public**, whose outrage forced the Hwange reversal. Undue influence thrives on darkness and on staying domestic; your task is to lift the matter into the light — and, in Zimbabwe especially, out to the world.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the connected grant, the rushed set-aside, the missing EIA, the undisclosed joint venture, the pressure on the community — and take it, with evidence, to the bodies and audiences beyond its control: the courts through an urgent and constitutional case, the international and conservation press, the foreign investors, the African Commission, and the public. Pair the exposure with the constitutional case and the public alarm, so the wrongdoing and the harm surface together. Exposure has its own momentum: a court's attention or a global story creates a record the government must answer, and it was public exposure that reversed Hwange. And protect yourself above all — the risks to defenders are real: take security and legal advice, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight — which in Zimbabwe can be won in a fast burst or ground out over years.

Early (Days-Weeks 0-8): Sound the Alarm, Get a Litigator, and Document

Pin down the project, the instrument, and the stage (Step 1), and root the campaign in the community's chiefs and leaders (Step 3). Move at once on what cannot wait: **raise the public alarm, reach a public-interest litigator** for a possible urgent interdict, and **demand the EIA** and report any absence to EMA. Begin the file — the grant, the EIA, the set-aside, the consultation record (Step 2 and What to Gather) — and get the **chiefs' rejection** on record. This early phase is cheap and fast, and in Zimbabwe speed is often everything: Hwange was reversed within days of the alarm.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Turn your evidence into arguments for each audience (Turning Evidence). Escalate as the facts warrant — the **urgent interdict**, the **constitutional case** under sections 73, 71, 68, and 85, and the **EMA** complaint (Step 4), anticipating that the government may rewrite its instruments, as at Chilonga. Expose any corruption to the courts, the press, and the world. Press the foreign investors and the reputation (8E). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others. Do the fast, time-sensitive things first, because a lost chance at an interdict, or at documenting the works, cannot be recovered. And sequence the moves so they land when they bite hardest — the alarm raised the moment the works are spotted, the interdict sought before the damage is done, the constitutional case built to survive a government rewriting its instruments, the enforcement pressure kept up after any win — because in Zimbabwe the difference between a project stopped and a project built is often a matter of days at the start and years of vigilance after.

Later (Months 6-48+): Sustain, Win the Line, and Enforce It

Sustain the movement against burnout and the government's maneuvers; protect your people; keep the record and the coverage alive. Pursue the durable prizes — a **project stopped or reversed**, a **grant or set-aside struck**, an **eviction barred**, a **ban won** — and then, learning from Hwange, **fight to enforce it**: chase the announced reversal into law and the titles into cancellation, through follow-up litigation, EMA, and sustained pressure. And judge success honestly. Sometimes it is a fast, outright reversal, as at Hwange. Often, against a connected venture, it is a project **delayed, exposed, conditioned, or a win only partly honoured** — a fight you must keep pressing, as Chilonga shows. That is not a lesser victory; it is what winning usually looks like here.

The Shape of a Campaign

DAYS-WEEKS 0-8	Sound the alarm Get a litigator (urgent interdict) Demand the EIA Chiefs' rejection Document
MONTHS 2-24	Grow the movement Arguments Interdict + constitutional case + EMA Investors Media (anticipate maneuvers)
MONTHS 6-48+	Sustain Protect people Win the reversal / struck grant / barred eviction Enforce it Redefine the win

FINAL ASSESSMENT

Zimbabwe gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits, which are steeper here than in most.

The strengths are real and distinctive. The **2013 Constitution's justiciable Declaration of Rights** — the **environmental right** of section 73, the property and fair-administration rights of sections 71 and 68 — is enforceable in court, and the **broad public-interest standing** of section 85 lets a litigator like **ZELA** bring the case for a community that could never act alone. The **EIA requirement** enforced by **EMA** offers a clean legal defect; the **chiefs** can deny a project legitimacy; and the **iconic wildlife and tourism** the country trades on make some projects acutely vulnerable to public and international pressure — the combination that reversed the Hwange coal grant in days.

The limits are just as real, and this is a hard place to fight. The ruling party dominates and maneuvers around rulings; communal land is insecure; a desperate economy pushes mining and Chinese investment; mining title overrides other uses; even a won ban can go unenforced; and defenders are at risk. No guide should pretend otherwise. The Chilonga community won interim relief and forced the government to rewrite its instruments — and still lost in the High Court and had to turn to the Constitutional Court; that hard reality is the condition of this fight, not its exception.

So the realistic promise is this: **raise the public alarm loudly and fast, get a public-interest litigator onto an urgent interdict, demand the EIA and expose its absence, bring the constitutional case under sections 73, 71, 68, and 85, get the chiefs' refusal on record, reach the investors and the world — and run all of it together, protecting your people and planning from the first day to enforce whatever you win.** Do that, and even against a connected, state-backed venture you can force delay, exposure, a struck grant, a barred eviction, and — as at Hwange — sometimes a swift, outright reversal. Do it as the defenders of Hwange did, turning public outrage and a constitutional case into a national about-face, and you can protect not only your own land or park but set a precedent others across Zimbabwe will stand on.

A last word on endurance. Some fights here are won in a week of outrage; others, like Chilonga, grind on for years against a government that keeps rewriting the rules — and the win must then be fought into enforcement. The proponent and the state are counting on your exhaustion and, sometimes, your fear. Their advantage is power, money, and patience; yours is a Constitution that binds them, courts that have ruled against them, a public and a world that love these places and people, and the plain fact that you are defending your home while they pursue a return. Play to that. Keep the file, keep the chiefs and the community united, keep the record and the coverage alive, protect your people, and treat every interdict, every struck instrument, every wave of outrage, every investor that hesitates, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Hwange proves they can work even in a hard place: a coal grant inside an elephant park was reversed in days, because the public raised the alarm and a lawyer turned the Constitution into a weapon. What decides the outcome, in the end, is method, endurance, and collective courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped, reversed, and delayed what looked unstoppable — a coal mine banned from an elephant park within days of the alarm, an eviction dragged into years of contested litigation that is still being fought, a people who simply refused to be moved quietly. The tools are here, and the sharpest of them — a justiciable Constitution, a lawyer who can wield it in the public interest, and a public and a world that will not look away — have already been made to work even against this government; what has ever been missing in the fights that were lost was not the law but the speed, the organisation, and the will to enforce the win. So can yours.

